

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #11	CCRB Case #: 202002831	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 02/08/2019 12:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/25/2021	Precinct: 102
Date/Time CV Reported Wed, 02/13/2019 12:00 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/13/2019 7:03 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jaipaul Ramdat	5369	953290	NARCBQS
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Bekas	04530	950063	NARCBQS
2. SGT Thomas Gagliardi	00996	930188	105 DET
3. DT3 Timothy Terrillion	5858	952286	NARCBQS
4. DT3 James Sgaglione	5742	952228	NARCBQS

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jaipaul Ramdat	Abuse: Detective Jaipaul Ramdat entered § 87(2)(b) in Queens.	A . Unsubstantiated
B . DT3 Jaipaul Ramdat	Abuse: Detective Jaipaul Ramdat searched § 87(2)(b) in Queens.	B . Unsubstantiated
C . Officers	Force: Officers used physical force against § 87(2)(b)	C . Officer(s) Unidentified

Case Summary

On February 13, 2019, § 87(2)(b) filed this complaint via phone with the New York City Department of Investigation Office of the Inspector General. On March 13, 2019, the CCRB received this complaint. § 87(2)(g)

On February 8, 2019, at 6:00 p.m. § 87(2)(b) was at his residence at § 87(2)(b) in Queens, on the § 87(2)(b) floor, where he, his brothers § 87(2)(b) and § 87(2)(b) and his mother § 87(2)(b) lived. His aunt, § 87(2)(b) was on the first floor of the residence.

Det. Jaipaul Ramdat, Det. Nicholas Bekas, Det. Timothy Terrillion, and Det. James Sgaglione of Narcotics Borough Queens South all entered the residence after § 87(2)(b) opened the main door (**Allegation A- Abuse of Authority- Exonerated; Allegation B- Abuse of Authority- Exonerated**). Outside of the residence was Sgt. Thomas Gagliardi of Narcotics Borough Queens South. They went to the § 87(2)(b) floor, where an officer allegedly punched § 87(2)(b) in the face, struck him in the face with a ballistic shield, stepped on his back, kicked him in the stomach and back, and put their knee on his face (**Allegation C- Force- Officers Unidentified**). § 87(2)(b) saw part of the apprehension, but § 87(2)(b) did not arrive at the residence until after the officers had already restrained § 87(2)(b).

As a result of this incident, § 87(2)(b) was arrested for § 87(2)(b)

(Board Review 01 and Board Review 20).

During her CCRB interview, § 87(2)(b) provided a cellphone clip of video to the CCRB from the building's surveillance cameras. The video shows the officers preparing to enter through the § 87(2)(b) entrance. It does not show any other FADO allegations (Board Reviews 02 and 03).

IAB investigated this incident under IAB Log number 2019-09950. Relevant portions of this investigation are excerpted below (Board Reviews 12 and 13).

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers entered § 87(2)(b) in Queens.

Allegation (B) Abuse of Authority: Officers searched § 87(2)(b) in Queens.

It is undisputed that at 6:00 p.m. on February 8, 2018, officers from Narcotics Borough Queens South entered and searched the apartment under search warrant § 87(2)(b), sworn out by Det. Jaipaul Ramdat on January 30, 2019.

Search Warrant § 87(2)(b), sworn out on § 87(2)(b), lists the location to be searched as § 87(2)(b), without a specific floor listed, for evidence of marijuana transactions, mail, cellphone, currency, scales, and evidence of marijuana transactions (Board Review 08).

§ 87(2)(b) who was on the § 87(2)(b) floor of the building, where he lives in a separate apartment with his mother, § 87(2)(b) and his brothers § 87(2)(b) and § 87(2)(b) testified that he first realized that officers were coming when his normally-quiet dog started barking, and officers sprayed something like a fire extinguisher at the apartment (Board Review 04).

§ 87(2)(b) who lives on the § 87(2)(b) of the building in a separate apartment, stated that she was leaving the apartment at the time that the officers arrived. She opened the door for them,

and they went to the § 87(2)(b) (Board Review 05).

§ 87(2)(b) realized that the officers were at the apartment when she received a call from § 87(2)(b) who said that there were officers present. She was not present for the initial entry (Board Review 06)

The investigation could not reach § 87(2)(b) § 87(2)(b) provided a partial statement, in which he confirmed that the officers came into the apartment. He did not respond to contact attempts to get him to continue the statement (Board Review 07).

§ 87(2)(b), § 87(2)(g), § 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f), § 87(2)(g)

Building alteration paperwork from the New York City Department of Buildings indicates that the owners of § 87(2)(b) received authorization to turn the structure into a two-family dwelling in 2003 (Board Review 26). A Google Street View image from the building from June 2018 shows two mailboxes next to the front door (Board Review 27).

New York State Criminal Procedure Law section 690.15 stipulates that search warrants direct a search of the location specified, and New York State Criminal Procedure Law section 690.30 restricts the execution of a warrant to 10 days' of when it is granted, between the hours of 6:00 a.m. and 9:00 p.m. (Board Review 09). People v. Mabrouk 290 A.D.2d 235 (2002) states the following of a mismatch between a warrant and the premises searched: "If the police make a factual mistake and describe a place to be searched in broader terms than appropriate, the validity of the warrant turns on the information available to them when they acted" (Board Review 25).

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation (C) Force: Officers used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that when the officers first entered, he tried to block their path to his dog, and asked "what the fuck" was wrong with them. An officer carrying a riot shield pushed him. § 87(2)(b) then leaned on the wall away from the officers, turned, and then a white male officer punched him once in the face with a closed fist. Officers he could not describe then hit him in the face with a riot shield once, kicked him in the stomach twice, put a knee on his face, and kicked him in the back. He testified that they did not precede this directive with any commands. He alleged bruising under his left nipple, bruising on his face, and bruising on the lower part of his abdomen, where he was kicked § 87(2)(b) testified that he did not receive any medical treatment for this incident, either while in police custody or afterwards (Board Review 04).

§ 87(2)(b) became uncooperative with the investigation after his in-person interview on

April 11, 2019, despite six follow-up calls and a letter and email for follow-up (Board Review 07).

§ 87(2)(b) stated that she went upstairs to see what was happening when she heard a very loud scream. An officer, whose face she could not see, was making a stepping motion on one of her nephew's legs. She did not know at the time which nephew it was. She did not remember seeing anyone being kicked. Shortly after she saw this, she was ordered away from the door by another officer. She discussed the incident with § 87(2)(b) afterwards, during which conversation he allegedly told her that the officer stepped on him, and that the officer who did so was involved in a vehicle accident with him (Board Review 05).

§ 87(2)(b) did not witness the apprehension and handcuffing of § 87(2)(b) or § 87(2)(b) § 87(2)(b)'s phone statement was cut off before questions could be asked about the force used, and he did not respond to multiple follow-up calls (Board Review 06).

PO Bekas, a white male, who was in the first set of entering officers with Det. Ramdat, and who was not carrying a shield, stated that when he entered, he immediately approached and handcuffed § 87(2)(b). He heard § 87(2)(b) telling the officers that his leg was broken, but did not otherwise observe § 87(2)(b) being handcuffed or see any force being used against him (Board Review 21).

Det. Ramdat, a Hispanic male, was also in the first group of entering officers, with PO Bekas. He was carrying a riot shield. The first occupant of the apartment he saw was § 87(2)(b) who secured the dog in the apartment in a separate room. Det. Ramdat told § 87(2)(b) to get on the ground, and § 87(2)(b) complied. None of the alleged force was used against him. Det. Ramdat did not remember making physical contact with the occupants of the apartment and did not remember which officer handcuffed § 87(2)(b). He stated that § 87(2)(b) was squirming on the ground as he was being handcuffed, but this action did not rise to the level of resisting arrest, and no officer used force against him (Board Review 22).

Det. Terrillion, a white male, stated that when he walked in, there was a small scuffle ahead of him., where the first, or entry bunker was located. Someone was trying to barricade one of the doors and wrestling with officers as they tried to handcuff him. He did not see who the struggle involved, and could not describe it further than this, but he denied that any officer used the alleged force against § 87(2)(b). He denied handcuffing anyone in the apartment (Board Review 10).

Det. Sgaglione, a white male, remembered immediately walking into the apartment and handcuffing § 87(2)(b). He denied that PO Bekas had any part in handcuffing § 87(2)(b). He denied having any physical contact with § 87(2)(b) in the apartment, and denied seeing him in the apartment at all (Board Review 11).

Sgt. Gagliardi, a white male, testified that he arrived inside of the apartment after § 87(2)(b) and § 87(2)(b) were handcuffed, and did not observe any force being used against people in the apartment (Board Review 19).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) does not note force being used by either the officers or § 87(2)(b) and the ISAR notes only that the details of the allegation are contained within the IAB file (Board Review 14).

§ 87(2)(g)

it is recommended that **Allegation C** be closed as **officers unidentified**.

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(b)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to the arrests involved.
- On May 28, 2020, the New York City Office of the Comptroller denied that any Notice of Claim was filed in regards to this incident. On July 8, 2020, a follow-up request was submitted. The results will be added to the case file upon receipt (Board Reviews 16 and 17)
- § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 11

Investigator: Miriam Lynch SI Miriam Lynch 07/28/2020
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 07/28/20
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date